

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND
OOCL (EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: January 23, 2025

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON RESPONDENTS' MOTION TO STRIKE BRIEF AND REVISED BRIEFING SCHEDULE

On December 20, 2024, Respondents filed a Motion to Strike ("Motion") seeking to strike Complainant's opening brief for exceeding the page limit set by the December 5, 2024, Order on Complainant's Motion to Expand Briefing Page Limits. The motion states that the parties conferred regarding the motion and that "Complainant is opposed to the relief sought herein and has requested an extension of time to respond to the foregoing motion to January 17, 2025. Respondents are not opposed to the requested extension." Motion at 1.

On December 23, 2024, an order was issued, stating:

Complainant had previously sought leave to increase the length of the opening brief from 80 to 140 pages. An extension of 25 pages was granted, so that Complainant's brief could be 105 pages. It appears that the opening brief is 96 pages, under the limit. However, the opening brief contains citations to a separate document labeled "Proposed Findings of Fact and Conclusions of Law." This document appears to include 33 pages of legal analysis [labeled Conclusions of Law ("COL")]. It is noted that many of the citations in the opening brief include a citation to the separate conclusions of law as well as a legal citation. Complainants will need to explain whether the conclusions of law include any legal citations not also cited in the opening brief and whether the brief can be read without referring to the separate conclusions of law.

Order Extending Time for Complainant to Respond to Motion to Strike Brief at 1. The order required that by January 17, 2024:

Complainant should file its response to the motion or file a revised opening brief that includes all legal citations and is within the page limit. Also on January 17, 2024, the parties should file a joint status report proposing any extension to the

remaining briefing dates. Respondents' Motion to Exclude Testimony will be addressed with the merits of the proceeding.

Id.

On January 17, 2025, the parties filed a joint status report (JSR"). In the JSR, the parties addressed Respondents' motion to strike Complainant's opening brief, Respondents' motion to exclude testimony, and the remaining briefing schedule.

Also on January 17, 2024, Complainant filed "a lightly revised amended opening brief" that "deletes all citations and references to the COL, and incorporates directly into the body of the Amended Opening Brief a handful of citations that were included in greater detail in the COL." JSR at 3. Although Complainant states that "the Amended Opening Brief may be read completely without reference to the COL," it does not file an amended conclusions of law or request to withdraw it. *Id.* at 3-4. Respondents assert that the opening brief should be stricken and argue alternatively that "[r]ather than be permitted to litter the record with an unknown number of 'superfluous' pages that Respondents will nevertheless have to respond to, Complainant should be required to properly amend its FOF/COL or have the entire submission stricken." JSR at 8.

Despite receiving an extended page limit for its brief, and permission to file its findings of fact in a separate document that did not have a page limit, Complaint filed its original brief with its conclusions of law appended to its findings of facts. Thus, the last 33 pages of Complainant's Proposed Findings of Fact and Conclusions of Law included legal arguments and analysis. Complainant has submitted a revised, and longer, opening brief, that is within the 105-page expanded page limit. And, Complainant states that the amended opening brief may be read without reference to the conclusions of law.

Therefore, the amended opening brief will be accepted in place of the original brief, which may be removed from the record. In addition, the conclusions of law will be stricken from the record. These 33 pages of additional legal analysis exceed the page limit and unnecessarily complicate the record. Accordingly, Respondent's motion to strike the opening brief is granted in part. The conclusions of law, found in Complainant's Proposed Findings of Fact and Conclusions of Law at pages 148 to 181, paragraphs 637 to 820, are stricken from the record. Respondents should not file a response to the conclusions of law as they are no longer part of the record.

In the JSR, Complainant contends that Respondents' motion to exclude testimony is procedurally improper as the parties were previously instructed that any objections to argument or evidence, including requests to strike, should be included in the parties' briefs, not filed as separate motions. JSR at 4. Respondents note that they understood that their motion to exclude will be addressed with the merits, however, they also argue that filing the motion to exclude in a separate document was proper. JSR at 10. Respondents have no objection to Complainant filing a response to the motion to exclude separately from their reply brief. JSR at 11.

The parties were instructed that motions regarding arguments or evidence should be filed as part of the parties' briefing. Therefore, filing the motion to exclude as a separate document was improper. However, at this point in this proceeding, the motion to exclude will not be stricken from the record. Rather the merits of the motion to exclude will be addressed in the

initial decision. Complainant may respond to the motion to exclude in a separate document which should be filed by the same deadline as their reply brief.

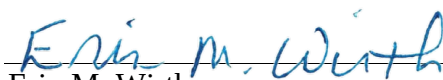
In addition, “Respondents respectfully request an additional 30 days to submit the Response Brief after the Presiding Officer rules on the motion to strike or from January 28, 2025, whichever is later.” JSR at 10. Complainant requests an additional 21 days (totaling 42 days) to file its reply brief and response to the motion to exclude. JSR at 7.

Complainant’s failure to properly file its initial brief resulted in significant delays in briefing. Complainant has not established a valid reason for it to benefit from this improper filing by receiving additional time to file its reply. In addition, Respondents’ early filing of its motion to exclude benefited Complainant by giving it additional time to prepare its response to that motion. Accordingly, Respondent will be provided an additional thirty days to respond to Complainant’s amended opening brief.

Accordingly, Respondents’ motion to strike Complainant’s opening brief is **GRANTED IN PART**. Complainant’s amended opening brief is accepted and will replace the original opening brief. In addition, the proposed conclusions of law, found in Complainant’s Proposed Findings of Fact and Conclusions of Law, pages 148 to 181, paragraphs 637 to 820, are stricken from the record. Respondent must not respond to them.

By February 27, 2025, Respondents shall file their opposition brief, proposed findings of fact, appendix, and responses to complainant’s proposed findings of fact.

By March 20, 2025, Complainant shall file its reply to respondents’ brief, reply to Respondents’ proposed findings of fact, and response to Respondents’ motion to exclude testimony. Complainant should not file a reply to Respondents’ response to Complainant’s findings of fact as such a filing is not authorized by the Scheduling Order.


Erin M. Wirth
Chief Administrative Law Judge